

# HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN SAMOA

## INTRODUCTION & FRAMEWORK

Community effort in Samoa once showed that the villages can defend their customary land — the heart of fa'a Samoa — even against a powerful international bank and their own government. In Samoa, most of the land is customary land, held not by individuals but by families, the **aiga**, under the authority of their chiefs, the **matai**, and protected by the Constitution from being sold away. In the early 2010s, the Asian Development Bank promoted reforms, under a programme to make "economic use" of customary land, that would have made it far easier to lease that land and to pledge those leases as security for bank loans — so that a single chief might lease family land without the family's consent, and a defaulted loan might hand large stretches of customary land to a bank for decades. A group of village chiefs saw where that road led: to the slow alienation of the land that is the foundation of Samoan life. They did not simply protest. With the help of an international advocacy organisation, they filed a complaint with the bank's own accountability mechanism, and they pressed for protection in law. In 2019, Samoa passed a law that shut off the main route to alienation and set new protections around leases of customary land. The land was defended.

A community in Samoa that would defend its land or environment works, as the chiefs did, through genuinely real tools, in an open island democracy. The distinctive lever is the **communal and constitutional protection of customary land**: held by the aiga for all its generations and shielded by the Constitution from sale, it has no single owner who can give it away — a powerful structural foundation, as it was against the reforms. Bound to this is the **authority of the matai and the aiga**, the chiefs and families who govern the land under fa'a Samoa. Where a project is backed by an international bank, the **accountability mechanisms of the financiers** — the bank's own complaint and compliance bodies — are a real lever, as the chiefs proved against the Asian Development Bank. And the **protection of the law and parliament** can be pressed to write real safeguards, as the 2019 law did; protest, petition, and litigation are lawful. Ordinary harmful projects, too, must reckon with **environmental impact assessment and the planning regulation**, and the **open democratic and community channels** — the elected parliament, the village councils, the courts — genuinely work. But these tools have real limits, and this guide states them plainly. The customary-land victory was a specific defence of communal land against alienation; the distinctive lever is that constitutional and communal shield, and an ordinary hotel, road, or quarry without that dimension relies on the weaker ordinary tools of assessment, planning, and democratic pressure. The financier-accountability lever works only where a project is backed by an accountable international bank. The nation is small, poor, aid-dependent, and climate-threatened, so the development pressure is real. And the 2019 law did not answer every danger. So aim for what these tools can genuinely deliver — customary land defended through its constitutional shield and the matai's authority; an internationally financed project held to its financiers' accountability; a harmful project assessed or refused — through the constitutional protection, the financier accountability, the law, the assessment, and the open democratic channels.

## The Whole Strategy in One Idea

You win here, as the chiefs did, by standing on the deep foundation of communal land and the tools that defend it. Stand on the constitutional and communal protection of customary land, and the authority of the matai and aiga who govern it; where an international bank backs a project, take the case to the financiers' own accountability mechanism, as the chiefs did against the ADB; press parliament to write real protection

into law, as the 2019 law did; and, for an ordinary project, work the environmental assessment, the planning, and the open democratic channels.

## Be Honest About Which Fight You're In

The customary-land victory was real and instructive, but honesty about its distinctive lever is the first discipline. It rested on the constitutional and communal protection of customary land, and on a financier with an accountability mechanism; not every fight has both. An ordinary development without the customary-land dimension relies on the weaker ordinary tools; the financier lever works only against an accountable international bank; the nation is small, poor, and climate-threatened, so the development pressure is constant; and the 2019 law did not answer every danger. So aim at the winnable — customary land defended, an internationally financed project held to account, an ordinary project assessed or refused — through the constitutional protection, the financier accountability, the law, and the open democratic channels.

## HOW THE SYSTEM WORKS

### Who Actually Decides

A Samoan decision runs through a small, open democracy and fa'a Samoa. The **matai and the aiga and the village councils** govern the customary land at its foundation. The **Constitution and the courts** protect it from alienation. The **government, parliament, and planning and environment bodies** decide the permits, assessments, and laws. And the **international financiers and their accountability mechanisms** answer, where they back a project. Map who decides — the village, the Constitution, the parliament, the financier — before spending a week on it.

### How a Project Moves — and Where You Jump In

A project — or a reform threatening the land — runs through the planning and environmental assessment, the customary-land framework, and, where financed internationally, the bank behind it. You enter through the constitutional and communal land protection and the matai's authority for a threat to customary land; through the financier's accountability mechanism where an international bank backs it, as the chiefs did; through parliament to write protection into law; and through the environmental assessment and democratic channels for an ordinary project. Enter early, standing on the deep foundation of communal land.

### Follow the Money and the Permissions

Follow the land: whether a project or reform threatens customary land, and how its constitutional and communal protection stands. Follow the finance: whether an international bank backs it, and what accountability it answers to, as the ADB did. Follow the law: whether parliament can be pressed to protect, as in 2019. Follow the permits: the planning and assessment an ordinary project needs. The leverage lies in the constitutional land protection, the matai's authority, the financier accountability, the law, and the assessment.

### Who's Supposed to Be Watching

Samoa has real watchers: the matai and village councils, the Constitution and courts, parliament, the planning and environment bodies, a free press, and — for internationally financed projects — the financiers' own accountability mechanisms. These genuinely function, as the customary-land fight showed, and a case engages them, standing on the communal-land foundation where it applies and the ordinary tools where it

does not.

## QUICK REFERENCE: SUCCESS RATES

Effort in Samoa is genuinely achievable, in an open democracy with a deep foundation of communal land — most powerfully, as the customary-land fight proved, where the constitutional protection and a financier's accountability can be combined. The single most decisive move is **standing on the constitutional and communal protection of customary land and taking a financier to its own accountability mechanism**, because communal land shielded by the Constitution has no single owner who can give it away, and because a financier's accountability body is a real check, as the ADB's was. The constitutional land protection is the distinctive lever; the matai's authority its foundation; the financier accountability the check; the law and assessment the further tools. What the tools deliver is real — customary land defended, a financed project held to account, an ordinary project assessed — though each lever needs its dimension to work.

## STEP 1: TARGET IDENTIFICATION

Ask five questions. **What is the harm?** — the development, reform, or project threatening the land or environment. **Does it touch customary land?** — the communal, constitutionally protected foundation. **Who backs it?** — an international bank with an accountability mechanism, as the ADB. **Can the law protect?** — a parliamentary safeguard, as in 2019. **What does an ordinary project need?** — the environmental assessment and planning. Pick the fight where the constitutional land protection, the financier accountability, or the assessment gives the clearest handle.

## STEP 2: DOCUMENTATION

Build the case in layers. **Layer one: the harm** — the development, reform, or project, and its threat to the land or environment, documented with the community's testimony and the science. **Layer two: the protection and the check** — the constitutional and communal land protection, the financier's accountability commitments, the parliamentary safeguards, or the assessment requirements the harm breaches or strains. **Layer three: the coalition** — the matai, the aiga, the advocacy allies, and the democratic channels. A case that stands on the communal-land foundation and the financier's own accountability, as the chiefs did, is one Samoa's institutions take seriously.

## WHAT TO GATHER, AND WHERE TO FIND IT

Gather the **harm record**: the project or reform, its plans, its threat to the land. Gather the **protection record**: the constitutional and communal land status, the matai and aiga authority. Gather the **check record**: the financier's accountability commitments, or the parliamentary and assessment requirements. Gather the **coalition record**: the matai, the village councils, the advocacy allies, the democratic channels. Samoa's open democracy and its living customary-land framework make much of this genuinely obtainable.

## STEP 3: BUILDING LOCAL AND INTERNATIONAL SUPPORT

The customary-land fight's lesson is the matai and aiga standing on communal land, joined by international advocacy. Build with the **matai and the aiga and village councils**, whose land and authority are the foundation; the **affected community**; the **international advocacy allies**, who helped the chiefs reach the

bank's accountability body; and the **democratic allies** in parliament and the press. Frame the cause around the defence of the land at the heart of fa'a Samoa where customary land is at stake — and, for an ordinary project, around the community and the environment.

## STEP 4: THE CONSTITUTIONAL PROTECTION, THE FINANCIER ACCOUNTABILITY & THE ORDINARY TOOLS — DEFENDING THE LAND

Set expectations honestly: the distinctive levers are powerful where they apply, and the ordinary tools govern where they do not.

### The Constitutional and Communal Land Protection

The distinctive lever is the **communal and constitutional protection of customary land** — held by the aiga, governed by the matai, shielded by the Constitution from sale — a powerful foundation, as it was against the reforms. Stand on it against any threat of alienation.

### The Financier Accountability and the Law

Where an international bank backs a project, the **accountability mechanisms of the financiers** are a real check, as the chiefs proved against the ADB, and the **protection of the law and parliament** can be pressed to write safeguards, as the 2019 law did. Take the case to the financier's accountability body and press parliament to protect.

### The Assessment, Planning & Democratic Channels

Ordinary projects must reckon with **environmental impact assessment and planning regulation**, and the **open democratic and community channels** — parliament, the village councils, the courts — genuinely work. Pursued together — the constitutional land protection, the financier accountability and the law, and the ordinary assessment and democratic tools — these levers defend the land.

## TURNING YOUR EVIDENCE INTO ARGUMENTS

Tailor the case to each audience. **For the constitutional and customary framework:** here is a threat to communal land the Constitution protects from sale. **For the matai and village councils:** here is the land at the heart of fa'a Samoa, threatened. **For a financier's accountability body:** here is a project breaching your own commitments, as the ADB's reforms were. **For parliament:** here is a danger the law should close, as in 2019. **For the planning and environment bodies:** here is a project needing proper assessment. **The golden rule:** stand on the communal-land foundation where it applies, take a financier to its own accountability, press the law, and for an ordinary project work the assessment and democratic channels.

## STEP 5: MEDIA STRATEGY

In an open democracy that treasures its land, media and fa'a Samoa matter. Frame the story, where customary land is at stake, around **the defence of the land and fa'a Samoa:** the communal land, the foundation of Samoan life, threatened with alienation, as it was by the reforms — and for an ordinary project, around the community and environment. Carry it through the Samoan and regional press, the international advocacy networks, and — for a financed project — the scrutiny of the financier. A few cautions: keep it accurate and grounded in the constitutional protection and the assessment; reserve the customary-land

frame for genuine threats to that land; and let the communal land, the matai's authority, and the financier's accountability carry the weight.

## EMAILS & LETTERS

Keep every message factual, grounded in the constitutional protection or the assessment, and framed for the land.

**8A — On the customary land:** set out the threat of alienation and the constitutional and communal protection against it.

**8B — To the matai and village council:** coordinate the defence of the land under fa'a Samoa.

**8C — To a financier's accountability mechanism:** file the complaint that a project breaches the bank's own commitments, as the chiefs did.

**8D — To a parliament member:** press for the law to close the danger, as in 2019.

**8E — To the planning or environment body:** identify an ordinary project and the assessment it needs.

**8F — To an international advocacy ally:** coordinate the support the chiefs found decisive.

**8G — To the community:** organise the defence, framed around the land or the environment.

**8H — To the press and public:** tell the story of the land defended, or the project assessed.

## IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

**The first 48 hours:** identify the harm and whether it touches customary land or is internationally financed; document it; write the one-page case. **The fastest-moving levers:** the constitutional land protection and the financier accountability where they apply; the assessment and planning where they do not. **Emergency action:** for a threat to customary land backed by an international bank, the constitutional protection and the financier's accountability mechanism, as the chiefs used; for an ordinary project, the assessment and parliament. Throughout, stand on the deep foundation of communal land.

## WHEN THE SYSTEM IS TILTED

Even in a democracy the field can tilt: a small, poor, aid-dependent nation under development pressure, where even the government and an international bank pushed the reforms. Recognise it, and lean on the levers the tilt cannot escape — the constitutional and communal land protection, the matai's authority, the financiers' accountability, the law, the environmental assessment, and the open democratic channels. In Samoa these genuinely work, as the customary-land fight proved. And accept, honestly, that the distinctive levers need their dimension, that ordinary projects rely on the weaker tools, and that the 2019 law did not answer every danger.

## WHEN IT'S ACTUAL CORRUPTION — AND WHO BENEFITS

Samoa is a small, open, rule-of-law democracy, so the more usual challenge is development and financier pressure — even from the government and an international bank — rather than outright capture. Where a project or reform is pushed against the land or the assessment, respond through the channels the nation

genuinely provides: the constitutional and customary protection, the matai and village councils, the courts, parliament, the free press, and — for financed projects — the financiers' accountability mechanisms. **On safety:** Samoa is a peaceful, rule-of-law democracy; the risks here are political and economic, not physical, so the work is open, lawful, and public, as the chiefs' was. Keep it accurate and grounded in the constitutional protection and the assessment, and stand on the communal-land foundation.

## INTEGRATION & TIMELINE

The steps run in parallel. The documented harm feeds the constitutional-protection stand, the financier-accountability complaint, the law, and the assessment at once; the matai, aiga, and advocacy allies organise together; the media tells the story throughout. A rough timeline: **weeks one to four**, document the harm and whether it touches customary land or a financier, and engage the matai and community; **months two onward**, press the constitutional protection, the financier's accountability, the law, or the assessment; **through the campaign**, as the customary-land fight took years, sustain the pressure to defend the land. The core discipline: communal-land-grounded where it applies, financier-accountable where a bank backs it, and assessment-based for ordinary projects.

## FINAL ASSESSMENT

Effort in Samoa is genuinely achievable, and in the customary-land fight it was instructive — the villages defending the land at the heart of fa'a Samoa against a powerful international bank and their own government, by standing on the constitutional protection of communal land, taking their complaint to the bank's own accountability mechanism, and winning real safeguards in law. This guide has been honest that the distinctive lever is unusual: it rested on the constitutional and communal protection of customary land and on a financier with an accountability mechanism, and not every fight has both; that an ordinary development relies on the weaker ordinary tools; that the financier lever works only against an accountable bank; that the nation is small, poor, and climate-threatened; and that the 2019 law did not answer every danger. But those honest truths do not diminish what is possible. A community that stands on the constitutional and communal protection of customary land and the authority of the matai and aiga, takes an international financier to its own accountability mechanism, presses parliament to write protection into law, and holds ordinary projects to their environmental assessment and the open democratic channels — can genuinely defend its land, as the chiefs defended theirs. The tools are real, and the distinctive strength is a nation whose land, held by families for all their generations and shielded by its highest law, has no single owner who can give it away.